



PUBLIC SAFETY CADETS

RICHARDSON POLICE DEPARTMENT

APOWW FORM / EMERGENCY DETENTION — CHEMICAL DEPENDENCY

Pursuant to Texas Health & Safety Code Chapter 462, §462.041 — Apprehension by Peace Officer Without Warrant

CASE NO. _____ DATE: _____ TIME: _____

THE STATE OF TEXAS

FOR THE BEST INTEREST AND PROTECTION OF: _____

Name: _____ DOB: _____ Race: _____ Gender: _____

Phone: _____ Address: _____

Now comes _____, a peace officer with _____
(name of agency) of the State of Texas, and states as follows:

STATUTORY DECLARATIONS PURSUANT TO §462.041(f)

- (1) I have reason to believe and do believe that the above-named person evidences chemical dependency;
- (2) I have reason to believe and do believe that the above-named person evidences a substantial risk of serious harm to himself/herself or others;
- (3) A specific description of the risk of harm is provided below;
- (4) I have reason to believe and do believe that the risk of harm is imminent unless the above-named person is immediately restrained;
- (5) My above-stated beliefs are derived from specific recent behavior, overt acts, attempts, or threats that were observed by me or reliably reported to me.

SPECIFIC DESCRIPTION OF THE RISK OF HARM — §462.041(f)(3)

DETAILED DESCRIPTION OF SPECIFIC BEHAVIOR, ACTS, ATTEMPTS, OR THREATS — §462.041(f)(6)

(Describe recent behavior, overt acts, attempts, statements, or threats observed by you or reliably reported to you. May use attachments.)

NAMES, ADDRESSES, PHONE NUMBERS & RELATIONSHIP OF REPORTING/OBSERVING PERSONS — §462.041(f)(7)

AGE CONSIDERATIONS

ADULT 65 YEARS OF AGE OR OLDER ☐ YES ☐ NO If yes, age: _____

CHILD 17 YEARS OF AGE OR YOUNGER ☐ YES ☐ NO If yes, age: _____

USE OF RESTRAINT

Was the person physically restrained in any way? ☐ YES ☐ NO

If YES, reason for physical restraint: ☐ Officer Safety ☐ Person's Safety ☐ Other: _____

CALL ORIGINATED AT: ☐ Public Area ☐ Residence ☐ School/University ☐ Hospital ☐ Other: _____



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APOWW FORM / EMERGENCY DETENTION — CHEMICAL DEPENDENCY (continued)

OBSERVATIONS / HISTORY — If YES to any question below, provide additional information in NOTES column.

QUESTION	YES	NO	UNK	NOTES
Harm to self or stating an intention to harm self?	☐	☐	☐	
Previous suicide attempt?	☐	☐	☐	
Harm to others or stating an intention to harm others?	☐	☐	☐	
Previous serious harm or injury to others?	☐	☐	☐	
Previous psychiatric hospital treatment?	☐	☐	☐	
Reported mental health diagnosis?	☐	☐	☐	
Prescribed psychiatric medications?	☐	☐	☐	
Current psychiatric medications taken?	☐	☐	☐	
History of chemical dependency or substance use treatment?	☐	☐	☐	
Current substance use (type/amount/frequency)?	☐	☐	☐	
Sleeping difficulty?	☐	☐	☐	
Substance Use Disorder diagnosis?	☐	☐	☐	

TRANSPORTED TO

☐ Inpatient Treatment Facility ☐ Hospital/Emergency Room ☐ Suitable Facility (per County Health Authority)
☐ Other: _____

For the above reasons, I present this application to seek emergency detention and temporary admission to the _____ inpatient chemical dependency treatment facility or
(name of facility)
hospital facility for the emergency detention of _____ on an emergency basis.
(person detained)

[If applicable] I have transferred the person detained to _____
(EMS Personnel Name & Agency)
for transport, and I have determined that transferring the person for transport is safe for both the person and the personnel.

PEACE OFFICER INFORMATION

PEACE OFFICER'S PRINTED NAME: _____ BADGE NO. _____

PEACE OFFICER'S SIGNATURE: _____

Address: _____ Zip Code: _____ Telephone: _____

STATUTORY AUTHORITY & NOTICE

This application is filed pursuant to Texas Health & Safety Code §462.041. A peace officer, without a warrant, may take a person into custody if the officer has reason to believe and does believe that the person is chemically dependent and because of that chemical dependency there is a substantial risk of harm to the person or to others unless immediately restrained, and the officer believes there is not sufficient time to obtain a warrant. The person shall be transported to the nearest appropriate inpatient treatment facility or, if unavailable, a facility considered suitable by the county's health authority. A person may not be detained in a jail or similar detention facility except in an extreme emergency.

Form created for use under Texas Health & Safety Code Chapter 462 — Not a state-prescribed form
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